CFI 067/2025 Coinmena B.S.C. (C) v Foloosi Technologies Ltd

FEBRUARY 06, 2026 COURT OF FIRST INSTANCE - ORDERS

Claim No: CFI 067/2025

IN THE DUBAI INTERNATIONAL FINANCIAL CENTRE COURTS

IN THE COURT OF FIRST INSTANCE

BETWEEN

COINMENA B.S.C. (C)

Claimant

and

FOLOOSI TECHNOLOGIES LTD

Defendant

ORDER WITH REASONS OF H.E. JUSTICE SHAMLAN AL SAWALEHI

UPON the Defendant's Application No. CFI-067-2025/1 dated 4 August 2025 seeking immediate judgment pursuant to Rule 24.1 of the Rules of the DIFC Courts (the "RDC") and/or strike out pursuant to RDC 4.16 (the "Application")

AND UPON the Order of H.E. Justice Shamlan Al Sawalehi dated 26 January 2026, by which the Application was dismissed and the Applicant was ordered to pay the Respondent's costs of the Application on the standard basis

AND UPON the Respondent's Statement of Costs dated 2 February 2026

AND UPON considering RDC Part 38 and Practice Direction No. 4 of 2017 (Interest on Judgments)

IT IS HEREBY ORDERED THAT:

1. The Applicant shall pay the Respondent 80% of the Respondent's costs of the Application, assessed on the standard basis, in the total sum of USD 155,879.50 (the "Costs Award").

2. The Applicant shall pay the Costs Award within 14 days of the date of this Order, pursuant to RDC 38.40.

3. In the event that the Applicant fails to pay the Costs Award within 14 days of the date of this Order, interest shall accrue at the rate of 9% per annum from the date of this Order until payment in full, in accordance with Practice Direction No. 4 of 2017.

Issued By:

Delvin Sumo

Assistant Registrar

Date of issue: 6 February 2026

At: 10am

SCHEDULE OF REASONS

1. This Order concerns the costs of the Defendant's Application for immediate judgment and/or strike out, which was dismissed by Order of H.E. Justice Shamlan Al Sawalehi dated 26 January 2026.

2. By that Order, the Applicant was directed to pay the Respondent's costs of the Application on the standard basis, with a Statement of Costs to be filed within five working days.

3. The Respondent duly filed a Statement of Costs dated 2 February 2026, claiming a total sum of USD 194,849.38, comprising professional fees and disbursements incurred in opposing the Application.

4. In determining the appropriate costs recovery, the Court has had regard to RDC 38.7, 38.8 and 38.23, and to the requirement that costs allowed on the standard basis be reasonable and proportionate.

5. Although the Respondent was successful in resisting the Application, I consider it appropriate, in the exercise of the Court's discretion, to limit recovery to 80% of the total costs claimed, reflecting proportionality and the nature of the Application.

6. The Applicant shall therefore pay the Respondent the sum of USD 155,879.50, as set out in the operative part of this Order.